incomplete records years after surveys were ordered.

The bill's journey through Parliament reflected India's polarised political landscape. Opposition parties under the INDIA bloc unanimously rejected the legislation, arguing it violates constitutional guarantees of religious autonomy under Articles 25 and 26. The parliamentary process itself became contentious when Opposition members accused Joint Parliamentary Committee chairman Jagdambika Pal of "bulldozing" proceedings and removing their dissent notes without consent. Six Opposition MPs formally protested to the Lok Sabha Speaker, describing the committee's handling as "an atrocious onslaught on constitutional religion and Parliament".

Muslim organisations mobilised unprecedented opposition, with the All India Muslim Personal Law Board (AIMPLB) reportedly facilitating over 50 million emails to the committee. Their fundamental concern centred on the bill's elimination of "waqf by user"—a provision recognising properties as waqf based on long-term religious use rather than formal documentation. Many historic religious sites exist without formal deeds, instead relying on community recognition and continuous religious practice spanning generations. While the final legislation applies this change only prospectively, many fear that numerous properties without proper documentation remain vulnerable to competing claims.

The amendments substantially alter the institutional architecture of waqf governance (see *What has Changed?*). Two non-Muslim members will now serve on both central and state waqf boards, alongside representation from various Muslim communities including Shia, Sunni, Backward-class Muslims, Bohra and Agakhani. The legislation also strengthens women's representation, requiring at least two Muslim women on each board. However, critics question why similar religious diversity is not mandated in Hindu temple administrations, with AIMIM leader Asaduddin Owaisi asking, "If no non-Hindu can become a member of Hindu endowment boards, then why are you making a non-Muslim one here?" Union home minister Amit Shah refuted claims that the inclusion of non-Muslims amounts to interference in Waqf matters. Their job, as he put it, is not to interfere in the religious matters of Muslims but to monitor whether its administration is running in conformity with the law, and whether the donations are being used for their intended purposes—i.e. for Islam, for the development of the poor etc.

Significantly, the amendments transfer the authority to determine whether a property qualifies as waqf from waqf boards to government officials above the district collector rank. Under Section 40 of the 1995 Act, waqf boards had the power to decide whether a property was waqf or not, with their decisions final unless modified by a waqf tribunal. While affected parties could challenge the decision in a tribunal, the burden of proof

WHAT'S WAQF?

A waqf is established when an individual voluntarily dedicates property for religious, charitable or pious purposes in accordance with Islamic law. This dedication permanently transfers ownership from the individual to God, making the property inalienable and managed by an appointed supervisor (mutawalli). Waqf properties include mosques, prayer grounds, shrines, Sufi centres, graveyards, educational institutions and shelter homes. Waqf boards—statutory bodies under the Waqf Act—administer these properties at the state level. The Central Waqf Council, established in 1964, provides national oversight

872,000
No. of properties
Waqf boards manage, covering over 9.4 lakh acres

59,000
properties face encroachment
by private individuals, businesses and even government entities

30
waqf boards
functioning across the country

₹12,000 cr.
Annual revenue
waqf properties could potentially generate. Actual collection is around Rs 200 crore (Sachar Committee Report, 2006)

WHAT HAS CHANGED?

The key changes that the amendments have brought in:

- Two non-Muslim members will now serve on both central and state waqf boards, alongside representation from various Muslim communities
- At least two Muslim women will be on each board
- Anyone creating a waqf needs to demonstrate five years of Islamic practice
- The authority to determine a waqf property is transferred from waqf boards to government officials above the district collector rank
- When disputes arise between government and waqf claims, the property will be presumed to belong to the former until the designated officer determines otherwise
- No requirement for a Muslim law expert on waqf tribunals; instead it would comprise a district court judge as chairman alongside a joint secretary from the state
- Tribunal decisions can now be appealed to the high court within 90 days
- The mandatory annual contribution from waqf institutions to boards reduced from 7 per cent to 5 per cent
- Institutions earning over Rs 1 lakh annually will now be audited by state government-appointed auditors